

Sahebrao Pundlikrao Vidhale And Others vs Harishkumar Hanumandas Malpani on 2 September, 2015

Equivalent citations: AIR 2016 (NOC) 114 (BOM.) (NAGPUR BENCH), 2015 (6) ABR 340

Author: A.P.Bhangale

Bench: A.P.Bhangale

IN THE HIGH COURT OF JUDICATURE AT BOMBAY, NAGPUR BENCH, NAGPUR

SECOND APPEAL NO.398 OF 2014

1. Sahebrao Pundlikrao Vidhale,
Aged about 60 years, Occ. Business, Mahatma Fule Colony,
Near Rathi Colony, Amravati.
2. Mohan Ramchandra Ghode,
Aged about 61 years, Occ. Agrilst., r/o. Kota, Tq. Babhulgaon, Distt. Yavatmal.
3. Murlidhar Annasaheb Amle,
Aged about 76 yrs., Occ. Agrilst., r/o. Tiosa, Tq. Tiosa, Distt. Amravati.
4. Narendra Jagatrao Ubhad,
Aged about 50 years, Occ. Agrilst., r/o. Bhilona, Tq. Achalpur, Distt. Amravati.

..... APPELLANTS

// VERSUS //

Harishkumar Hanumandas Malpani,
Aged about 48 years, Occ. Agrilst. and Business, r/o.
Rathi Nagar, Amravati, Tq. and Distt. Amravati. RESPONDENT

Mr.V.A.Kothale, Adv. for the Appellants.
Mr.R.L.Khapre, Adv. for the Respondent.

Date of reserving the Judgment: 24.8.2015.
Date of pronouncing the Judgment: 2.9.2015.

CORAM: A.P.BHANGALE, J.

JUDGMENT:

1. This Second Appeal is preferred against the Judgment and decree passed in Regular Civil Appeal No.312 of 2000 by the learned Principal District Judge, Amravati on 4.8.2014 whereby the Judgment and decree passed by Joint Civil Judge (Sr.Dn.), Amravati for specific performance of agreement to sell in Special Civil Suit No.136 of 1987 was confirmed.

2. The brief facts are as under:

Original plaintiff (respondent) had instituted Special Civil Suit No.136 of 1987 against the present appellants (original defendants) on the ground that the first defendant for himself and on behalf of defendant nos. 2 to 4 had purchased the immovable property known as Old Milan Hotel building, Opposite Government Polytechnic Compound, Gadge Nagar and undertook construction of Shopping Complex of 60 ft. x 66 ft. of field bearing Survey No.28, mouza Shegaon, Pragane Nandgaonpeth, Tq. And Distt. Amravati. Construction was of five shops and one room, out of which one shop premises admeasuring 10 ft. x 17 ft. was agreed to be sold by defendant no.1 for himself and other defendant nos. 2 to 4 to the plaintiff for a consideration of Rs.77,000/-. Earnest amount in the sum of Rs.50,000/- was paid by the plaintiff. The defendants were supposed to inform the plaintiff about the exact area and the sale deed to be executed on 21.9.1987 pursuant to agreement to sell dt. 19.9.1987 [continuation truncated at source].